# ComplyTrack India

## Indian Compliance Laws Guide

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Sectors Covered: 1

Total Regulations: 12

*Disclaimer: This document is for informational purposes only.*
*Always refer to official government sources for legal compliance.*

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**1. Manufacturing Sector**

12 regulations

# Manufacturing Sector

Source: https://dpiit.gov.in

## 1 Factories Act, 1948

**Section: Sections 1-120**

Regulates working conditions in factories including health, safety, welfare, and working hours. Applies to all manufacturing units with 10+ workers and power, or 20+ without power.

### Key Requirements:

- Factory registration with Chief Inspector
- Health and safety standards compliance
- Working hours: 9 hours/day, 48 hours/week
- Overtime provisions
- Weekly holiday mandatory
- First aid and medical facilities
- Canteen for 250+ workers
- Rest rooms and latrines
- Ventilation, lighting, temperature control
- Annual leave with wages
- Accident reporting and record maintenance

### Penalties for Non-Compliance:

Section 92: Fine up to Rs. 2 lakh. Section 94: Imprisonment up to 2 years for serious accidents.

*Source: https://labour.gov.in/sites/default/files/FactoryAct1948.pdf*

## 2 Boilers Act, 1923

**Section: Sections 1-41**

Regulates registration and use of boilers and unfired pressure vessels. Ensures safety in boiler operations.

### Key Requirements:

- Boiler registration with Inspector of Boilers
- Hydraulic testing before commissioning
- Annual inspection and certification
- Qualified boiler operators
- Safety valve maintenance
- Record of boiler operations

### Penalties for Non-Compliance:

Section 18: Fine up to Rs. 1,000 and/or imprisonment up to 6 months.

*Source: https://www.bis.gov.in/boiler-act*

## 3 Industrial Disputes Act, 1947

**Section: Sections 1-38**

Governs industrial relations, dispute resolution, strikes, lockouts, retrenchment, and layoff.

### Key Requirements:

- Standing orders for 100+ workers
- 14-day notice for strike/lockout
- Retrenchment compensation: 15 days/year service
- Prior government approval for retrenchment (100+)
- Dispute reference to Labour Court/Tribunal
- Layoff and closure procedures

**Penalties for Non-Compliance:**

Section 26: Fine up to Rs. 1,000 for illegal strikes. Section 36A: Imprisonment up to 6 months.

*Source: https://labour.gov.in/sites/default/files/IndustrialDisputesAct1947.pdf*

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## Standards of Weights and Measures Act, 1976

**Section: Sections 1-82**

Regulates use of weights and measures in trade and commerce. Ensures accuracy in measurements.

**Key Requirements:**

- Legal Metrology compliance
- Verification of weighing instruments
- Pre-packaged commodity rules
- Net quantity declaration
- Periodic re-verification
- Registration of manufacturers

**Penalties for Non-Compliance:**

Fine up to Rs. 25,000 and/or imprisonment up to 1 year.

*Source: https://legislative.gov.in/acts-auctions*

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## Standards of Weights and Measures (Packaged Commodities) Rules, 1977

**Section: Rules 1-25**

Regulates labeling and packaging of pre-packaged commodities.

**Key Requirements:**

- Name and address of manufacturer
- Net quantity declaration
- Date of manufacturing
- Best before/use by date
- MRP (Maximum Retail Price)
- Lot/batch number
- Commodity-specific declarations

**Penalties for Non-Compliance:**

Fine up to Rs. 25,000 for first offence. Subsequent offences: fine up to Rs. 50,000 or imprisonment up to 1 year.

*Source: https://legislative.gov.in/acts-auctions*

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## Bureau of Indian Standards Act, 2016

**Section: Sections 1-43**

Establishes Bureau of Indian Standards (BIS). Regulates standardization, certification, and quality marking.

**Key Requirements:**

- BIS certification for mandatory products
- ISI mark compliance
- Quality management systems
- Product testing to Indian Standards
- Marking and labeling requirements
- License from BIS
- Conformity assessment procedures

**Penalties for Non-Compliance:**

Section 38: Fine up to Rs. 5 lakh and/or imprisonment up to 1 year for misuse of BIS marks.

*Source: https://www.bis.gov.in*

## 7 Indian Contract Act, 1872

**Section: Sections 1-238**

Governs contracts in India including formation, performance, and breach. Foundation of commercial agreements.

**Key Requirements:**

- Valid contract formation (offer, acceptance, consideration)
- Capacity to contract
- Free consent
- Lawful object
- Written agreements for certain transactions
- Performance as per terms

**Penalties for Non-Compliance:**

Compensation for breach as per Section 73.

*Source: https://legislative.gov.in/acts-auctions*

## 8 Sale of Goods Act, 1930

**Section: Sections 1-66**

Governs sale of goods contracts including transfer of property, rights, and obligations.

**Key Requirements:**

- Sale agreement with essential terms
- Transfer of property in goods
- Delivery and acceptance
- Warranty and condition compliance
- Right to return goods
- Payment terms

**Penalties for Non-Compliance:**

Compensation for breach of contract.

*Source: https://legislative.gov.in/acts-auctions*

## 9 Consumer Protection Act, 2019

**Section: Sections 1-107**

Protects consumers against unfair trade practices, defective goods, and deficient services. Establishes consumer courts.

**Key Requirements:**

- Product liability compliance
- Consumer rights disclosure
- Defect-free goods supply
- Fair pricing practices
- No misleading advertisements
- Consumer complaint redressal
- Product recall mechanism
- E-commerce rules compliance

**Penalties for Non-Compliance:**

Section 89: Compensation up to Rs. 10 crore for product defects causing death or injury.

*Source: https://consumeraffairs.nic.in*

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## Competition Act, 2002

**Section: Sections 1-66**

Prevents anti-competitive practices, abuse of dominant position, and regulates mergers and acquisitions.

**Key Requirements:**

- No anti-competitive agreements
- No abuse of dominant position
- Merger notification for large deals
- Competition compliance program
- No bid rigging or cartelization
- Fair competition practices

**Penalties for Non-Compliance:**

Section 27: Fine up to 10% of average turnover for anti-competitive agreements.

*Source: https://www.cci.gov.in*

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## Pollution Control in Manufacturing

**Section: Environmental Compliance**

Environmental compliance for manufacturing units including emission, effluent, and waste management.

**Key Requirements:**

- Consent to Establish (CTE) from SPCB
- Consent to Operate (CTO) from SPCB
- Emission standards compliance
- Effluent treatment and discharge
- Hazardous waste management
- Environmental Impact Assessment
- Annual environmental audit

**Penalties for Non-Compliance:**

Under EPA: Imprisonment up to 5 years and fine up to Rs. 1 lakh.

*Source: https://moef.gov.in*

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## Electronics Manufacturing Compliance

**Section: MeitY/MCA**

Compliance requirements for electronics and semiconductor manufacturing.

**Key Requirements:**

- ISI certification for electronics
- BIS registration for electronics
- E-waste management
- RoHS compliance
- Product safety standards
- Testing and certification
- Import/export licenses

**Penalties for Non-Compliance:**

Product seizure and fines under BIS Act.

*Source: https://meity.gov.in*

# Appendix

## Official Government Sources

- **Reserve Bank of India (RBI)**
  https://www.rbi.org.in
- **Securities and Exchange Board of India (SEBI)**
  https://www.sebi.gov.in
- **Ministry of Corporate Affairs (MCA)**
  https://www.mca.gov.in
- **Income Tax Department**
  https://www.incometax.gov.in
- **GST Council**
  https://www.gstcouncil.gov.in
- **Central Board of Direct Taxes (CBDT)**
  https://www.cbdt.gov.in
- **Ministry of Labour & Employment**
  https://labour.gov.in
- **Employees Provident Fund Organisation (EPFO)**
  https://www.epfindia.gov.in
- **Employees State Insurance Corporation (ESIC)**
  https://www.esic.nic.in
- **Ministry of Environment, Forest & Climate Change**
  https://moef.gov.in
- **Central Pollution Control Board (CPCB)**
  https://cpcb.nic.in
- **Food Safety and Standards Authority of India (FSSAI)**
  https://www.fssai.gov.in
- **Central Drugs Standard Control Organisation (CDSCO)**
  https://cdsco.gov.in
- **National Medical Commission (NMC)**
  https://www.nmc.org.in
- **Telecom Regulatory Authority of India (TRAI)**
  https://www.trai.gov.in
- **Indian Computer Emergency Response Team (CERT-In)**
  https://www.cert-in.org.in

## Important Notes

- This document is generated for informational purposes only.
- Always refer to official government websites for the latest regulations.
- Laws and regulations are subject to amendments and updates.
- Consult legal professionals for specific compliance advice.
- Some regulations may have state-specific variations.